

25STCV28363 25STCV28363

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 15, 2026

CASE NUMBER

25STCV28363

MOTION

Demurrer to Complaint

MOVING PARTY

Defendant Weng-ge Xiao

OPPOSING PARTY

Plaintiff Industrial

Bank Co., Ltd., Chengdu Branch

MOTION

Plaintiff

Industrial Bank Co., Ltd., Chengdu Branch ("Plaintiff") sued Defendant Weng-ge Xiao ("Defendant") for recognition of a foreign judgment Plaintiff obtained against Defendant. Defendant demurs to Plaintiffs' complaint. Plaintiff opposes the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Pursuant to the

Uniform Foreign-Country Money Judgments Recognition Act, a party with a foreign-country judgment may file an action seeking recognition of that judgment. (Code Civ. Proc., § 1718.) In the instant case, Plaintiff alleges it obtained a judgment in China against Defendant. For pleading purposes, Plaintiff's allegations suffice.

In opposition,

Defendant argues the judgment cannot be enforced because the Chinese court did not have personal jurisdiction over Defendant.

In that regard, Code of Civil Procedure section 1716, subdivision (b)(2) provides "[a] court of this state shall not recognize a foreign- country judgment if . . . [t]he foreign court did not have personal jurisdiction over the defendant." However, Defendant cites no authority for the proposition Plaintiff must allege its claim for recognition of its judgment with such particularity. Any issues with the judgment are evidentiary matters which are not appropriate for adjudication and resolution through a demurrer. (See, e.g., AO Alpha-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 196-197 [issue of recognition of a foreign-country judgment opposed on grounds for lack of personal jurisdiction, insufficient notice, and incompatibility with due process considered by way of cross motions for summary judgment and

summary adjudication].)

The statutory

framework appears to bear this out in that, in the first instance, the party

seeking recognition of a foreign-country judgment has the burden of

establishing such a judgment is entitled to recognition. (Code Civ. Proc., § 1715, subd. (c).) Once a party has satisfied that burden, any party

resisting recognition of a foreign-country judgment then has the burden of establishing

a ground for nonrecognition, as provided in Code of Civil Procedure section 1716,

subdivision (b), exists. (Code Civ. Proc.,

§ 1716, subd. (e).) Moreover, a

foreign-country judgment must not be refused recognition for lack of personal jurisdiction

if any number of conditions applies, as set forth in Code of Civil Procedure section

1717.

Simply put, at

this pleading stage, when no discovery has been conducted, Defendant's

contention the Chinese court lacked personal jurisdiction would require the

Court to consider matters outside of the four corners of the operative complaint

and matters, in any event, which would require submission of evidence.

CONCLUSION AND ORDER

Defendant's

demurrer to Plaintiff's complaint is overruled.

Defendant is to answer the operative complaint within 20 days of notice

of the Court's order.

Defendant is ordered

to provide notice of the Court's ruling and to file proof of service of same.